

**m.moszkowski@deepgulf.net**

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**From:** m.moszkowski@deepgulf.net  
**Sent:** Monday, June 30, 2025 8:32 AM  
**To:** 'susy.carlson@flcourts1.gov'  
**Cc:** 'Denise Moffitt'; 'Monica Andrews'; 'Braden Ball'  
**Subject:** Emergency Request for Judicial Review  
**Attachments:** Emergency Request 250630.pdf

Dear Chief Judge John L. Miller,

I respectfully submit the attached emergency request for administrative review and intervention in **Case No. 2018 CA 000543 (DeepGulf, Inc. and Toke Oil and Gas S.A. vs Marc M. Moszkowski)**. A Final Judgment is expected to be entered imminently, based on proceedings from which I was **excluded by financial, medical, and procedural barriers**, despite full notice to the Court.

I am a 71-year-old pro se defendant, physically incapacitated and under judicial seizure of my sole property and bank account. I was **denied adjudication of indigency, barred from remote appearance**, and my **counterclaim was stricken without hearing or legal basis**. The **Order denying my Emergency Motion was entered without analysis**, yet the Court proceeded with trial in absentia.

I ask that Your Honor urgently review the attached **Declaration, Notice of Objection**, and supporting documentation. I am available for immediate videoconference. I ask the Court to stay further action and consider reassignment to ensure procedural fairness.

Respectfully,

**Marc Moszkowski**

Pro Se Defendant

Case 2018 CA 000543

Email: [m.moszkowski@deepgulf.net](mailto:m.moszkowski@deepgulf.net)

Phone: (251)300 4820

*Addressed to: Judicial Assistant to Hon. Judge Miller Susy Carlson, [susy.carlson@flcourts1.gov](mailto:susy.carlson@flcourts1.gov)*

*Copied to : Judicial Assistant to Hon. Judge Shackelford Denise Moffitt, [denise.moffitt@flcourts1.gov](mailto:denise.moffitt@flcourts1.gov)*

Copied to: [braden@balllawfirm.com](mailto:braden@balllawfirm.com), Monica Andrews, [mandrews@lawpensacola.com](mailto:mandrews@lawpensacola.com)

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**REQUEST FOR JUDICIAL REVIEW AND MOTION FOR  
REASSIGNMENT OR DISMISSAL DUE TO PROCEDURAL  
IRREGULARITIES AND DUE PROCESS VIOLATIONS**

**ADDRESSED TO:**

**THE HONORABLE CHIEF JUDGE JOHN L. MILLER  
FIRST JUDICIAL CIRCUIT OF FLORIDA**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully petitions the Chief Judge of the First Judicial Circuit for supervisory intervention pursuant to Rule 2.215(b)(5), Florida Rules of Judicial Administration, to address serious procedural irregularities and constitutional violations occurring in the above-captioned matter. Defendant also requests, in the alternative, reassignment to a different division, and/or

leave to file an immediate Motion to Dismiss or Motion for New Trial with remote participation.

## **I. PROCEDURAL POSTURE AND BASIS FOR URGENT INTERVENTION**

1. The case was originally filed in 2018 and remanded from federal court in early 2021. Since then, numerous motions filed by Defendant have been summarily denied or ignored.
2. On June 17, 2025, a bench trial proceeded under default despite:
  - Defendant's medically certified and court-documented inability to travel;
  - Verified indigency due to seizures of Defendant's home and all financial accounts by a Plaintiff associate;
  - Defendant's repeated filings requesting accommodation, which were never substantively ruled upon.
3. On June 26, 2025, an order was entered nunc pro tunc to June 13, denying Defendant's Emergency Motion to Stay Proceedings Pending Resolution of Constitutional and Threshold Issues and for Indigency Determination—without any findings or reasoning, and with no acknowledgment of the constitutional issues raised.

## II. DUE PROCESS VIOLATIONS

4. Defendant has been wholly denied procedural access, in violation of:

- The Fourteenth Amendment to the U.S. Constitution;
- Article I, Section 9 of the Florida Constitution;
- *Boddie v. Connecticut*, 401 U.S. 371 (1971);
- Florida Rule of Judicial Administration 2.515.

5. Defendant's verified indigency, supported by sworn affidavits and French court documents, has been ignored despite a French tribunal less than 10 miles from Defendant's domicile appointing him legal aid under that country's equivalent system.

6. Plaintiff's associate, David Rumsey (4th largest shareholder of DeepGulf, Inc.), obtained judicial liens in France resulting in the forced seizure of Defendant's property and income.

7. Despite these extraordinary circumstances, no hearing was held, no order was issued regarding Defendant's indigency, and the case proceeded to default.

## III. ADDITIONAL IRREGULARITIES

8. Defendant's Amended Counterclaim, raising claims of over \$1.1 million (including \$888,000 in unpaid salary, \$150,000 in

unreimbursed expenses, and \$90,000 in unpaid legal costs under corporate bylaws), was struck without analysis or hearing.

9. Plaintiffs have failed to present any new evidence since federal dismissal in 2020, whereas Defendant has filed over 100 pleadings and introduced extensive new documentary evidence.
10. Statute of limitations bars under Fla. Stat. § 95.11 were fully briefed, yet never addressed by the presiding court.
11. Despite repeated filings requesting remote appearance, including verified medical disability and financial impossibility, Defendant was barred from participating, in violation of basic due process and ADA-aligned principles.

#### **IV. REQUEST FOR RELIEF**

WHEREFORE, Defendant respectfully requests that the Honorable Chief Judge:

1. Take judicial notice of the record in this case, including Defendant's recent constitutional filings;
2. Grant leave for Defendant to file a formal Motion to Dismiss and/or Motion for New Trial, with authority to appear remotely;
3. Consider reassignment of this matter to another division in the

interest of fairness, transparency, and judicial integrity;

4. Alternatively, provide written explanation as to why such requests cannot be honored in light of constitutional precedent and administrative authority.

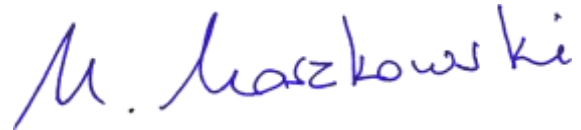
Respectfully submitted this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 30<sup>th</sup> day of June, 2025, a copy of this Request has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DECLARATION OF MARC MOSZKOWSKI IN SUPPORT OF  
DEFENDANT'S RENEWED MOTION TO DISMISS FOR FRAUD ON THE  
COURT, LACK OF BOARD AUTHORIZATION, JURISDICTIONAL  
DEFECTS, AND STATUTE OF LIMITATIONS BAR**

I, Marc Moszkowski, declare as follows:

1. I am the Defendant in the above-captioned action. I make this declaration in support of my concurrently filed **Renewed Motion to Dismiss for Fraud on the Court, Lack of Board Authorization, Jurisdictional Defects, and Statute of Limitations Bar.**
2. I reside in France and have appeared pro se in this matter for several years due to financial and physical constraints that have made travel to Florida impossible.



3. On June 27, 2025, I filed a formal **Notice of Objection and Constitutional Challenge to Summary Denial of Defendant's Emergency Motion to Stay Proceedings**, which details:

- The procedural and constitutional violations arising from the Court's refusal to adjudicate my indigency;
- The impact of judicial liens and property seizure obtained by Plaintiff's close associate;
- My complete lack of access to legal assistance or court participation;
- The Court's denial of my motions for remote appearance and procedural access;
- And the improper striking of my counterclaim without hearing or analysis, despite its content exceeding the Complaint's value.

4. A true and correct copy of that Notice is attached hereto as **Exhibit A**.

5. All statements made in the June 27 Notice are accurate to the best of my knowledge and belief, and I reaffirm them in full herein.

6. I respectfully request that the Court consider this Declaration and the attached Exhibit A in support of the Motion to Dismiss.

**I declare under penalty of perjury under the laws of the State of Florida that the foregoing is true and correct.**

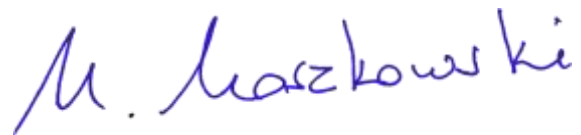
Executed on this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 30<sup>th</sup> day of June, 2025, a copy of this Declaration has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF OBJECTION AND CONSTITUTIONAL CHALLENGE TO  
SUMMARY DENIAL OF DEFENDANT'S EMERGENCY MOTION TO  
STAY PROCEEDINGS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully places on the record his formal objection to the Order titled “**Order Denying Defendant’s Emergency Motion to Stay Proceedings Pending Resolution of Constitutional and Threshold Issues and for Indigency Determination,**” entered nunc pro tunc to June 13, 2025 and filed June 26, 2025. As grounds therefor, Defendant states:

## **I. SUMMARY DENIAL WITHOUT FINDINGS ON CONSTITUTIONAL AND THRESHOLD GROUNDS**

**1.** Defendant's Emergency Motion presented urgent and substantial constitutional questions, including:

- Statute of limitations bar (Fla. Stat. § 95.11);
- Lack of board authorization by both co-Plaintiff Toke Oil & Gas S.A. and Plaintiff DeepGulf, Inc. to initiate or maintain this litigation;
- Inability to travel due to verified physical and financial incapacity;
- Repeated refusal by the Court to adjudicate indigency or provide procedural access, including persistent failure to rule meaningfully on motions for remote appearance or other alternatives.

**2.** The Court's denial of this Emergency Motion was entered without any factual findings, legal reasoning, or acknowledgment of the substantial constitutional and threshold issues raised—despite its direct implications for the legitimacy of the trial and default judgment.

3. This denial violates both state and federal due process guarantees, including:

- The Fourteenth Amendment to the United States Constitution, which prohibits deprivation of property without meaningful opportunity to be heard;
- Article I, Section 9 of the Florida Constitution, which guarantees that “[n]o person shall be deprived of life, liberty or property without due process of law”;
- Florida Rule of Judicial Administration 2.515, requiring that all orders be reasoned and sufficiently detailed for review;
- And Canon 3(B)(8) of the Florida Code of Judicial Conduct, which mandates that judges dispose of all judicial matters promptly, efficiently, and fairly.

4. As recognized in *Boddie v. Connecticut*, 401 U.S. 371 (1971), due process prohibits courts from denying access to indigent litigants where court adjudication is the only forum available for defending property or liberty.

5. The retroactive entry of the Order (*nunc pro tunc* to June 13, 2025), but not filed until June 26, only exacerbates these concerns, creating

ambiguity in the record as to whether Defendant had any fair opportunity to seek reconsideration or appellate relief before the June 17 trial was forced to proceed under default.

## **II. OBJECTION TO COURT’S REFUSAL TO CONSIDER IRREFUTABLE INDIGENCY AND SEIZURE OF PROPERTY BY PLAINTIFF’S CONFEDERATE**

**6.** Defendant has submitted repeated and un rebutted evidence that:

- His bank account in France is under a judicial lien obtained by David Rumsey—a known confederate and litigation ally of Plaintiff Howard and the fourth-largest shareholder in DeepGulf, Inc.—such that any balance exceeding €646 is automatically seized;
- The same individual has obtained a judicial lien on Defendant’s only residence and is currently pursuing its forced liquidation;
- Defendant has no access to credit, no legal source of income other than his meagre pension of under \$900 per month, and no means to travel to the United States or retain legal counsel.

**7.** These facts, independently and collectively, establish Defendant’s status as indigent under both Florida law and constitutional precedent.

In fact, Defendant was recently recognized as indigent by a court located less than 10 miles from his residence, which appointed him a legal aid attorney (*avocat commis d'office au titre de l'aide juridictionnelle*) under France's equivalent of public defense. It is inconceivable that such a designation would be made lightly by a tribunal sitting within full geographical and legal proximity to Defendant's actual circumstances.

**8.** Despite formal filings requesting a determination of indigency, the Court has:

- Never held a hearing;
- Never issued findings;
- And has proceeded with trial in absentia, under default, with full knowledge of Defendant's incapacity to appear.

**9.** Under *Boddie v. Connecticut*, it is a violation of the Due Process Clause to deny a party access to court based solely on inability to pay when court access is the exclusive mechanism for defending property or liberty.

**10.** Here, Defendant's exclusion from trial and the resulting adverse judgment were the direct result of conditions entirely beyond his

control—conditions materially caused by Plaintiffs and their associates.

- 11.** Any ruling, injunction, or Final Judgment entered under these circumstances is constitutionally defective, and this objection is expressly preserved for appellate and federal review.

### **III. IMPROPER STRIKING OF DEFENDANT'S COUNTERCLAIM WITHOUT ANALYSIS**

- 12.** The Court's Final Judgment states that "The Counterclaim filed by Defendant was previously stricken," but offers no reasoning or reference to legal authority.

- 13.** Defendant's **Amended Counterclaim** was grounded in factual allegations already supported elsewhere in the record by financial records, internal corporate correspondence, and sworn declarations, which collectively documented:

- \$888,000 in unpaid contractual salary obligations by the Plaintiffs (3 years at \$120,000 and 4 years at \$132,000);
- \$150,000 in unreimbursed business expenses advanced personally;
- \$90,000 in legal expenses owed under DeepGulf's own bylaws;



- Ownership and misappropriation of intellectual property;
- And acts of fraud, breach of fiduciary duty, and abuse of process.

**14.** The Court never held a hearing on these claims and summarily brushed them aside due solely to Defendant's inability to travel—a deprivation not only caused by Plaintiff's own confederates, but one which, even if not pre-existing, was made real and absolute by their actions. Striking the counterclaim without analysis, particularly where its subject matter exceeds the dollar value of the Complaint, constitutes a further denial of due process and judicial impartiality.

#### **IV. EXCLUSION FROM TRIAL DESPITE VIABLE REMOTE OPTIONS**

**15.** Defendant had repeatedly requested alternative means of participation, including remote appearance via Zoom or similar platforms. Plaintiffs' insistence on in-person trial—despite full knowledge of Defendant's medical and financial incapacity—effectively eliminated all meaningful opportunity for Defendant to defend himself. The Court's acquiescence to this exclusion, without

ruling on Defendant's medical documentation or financial hardship, denied him the most basic procedural safeguards.

**WHEREFORE**, Defendant respectfully requests that the Court take judicial notice of this objection, acknowledge the procedural and constitutional defects embedded in the summary denial of the Emergency Motion, and recognize that any Final Judgment based upon such denial is constitutionally infirm and subject to appellate and, if necessary, federal review.

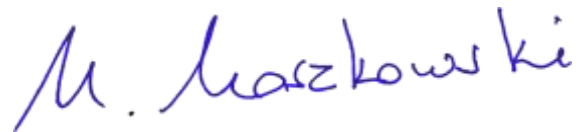
Respectfully submitted this 27<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 27<sup>th</sup> day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

*M. Marzowski*

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF FILING RENEWED MOTION TO DISMISS FOR FRAUD ON  
THE COURT, LACK OF BOARD AUTHORIZATION, JURISDICTIONAL  
DEFECTS, AND STATUTE OF LIMITATIONS BAR**

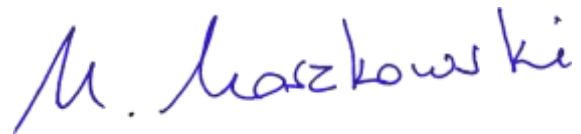
COMES NOW the Defendant, Marc Moszkowski, pro se, and hereby provides notice of the filing of the following document, submitted concurrently with a formal **Request for Judicial Review** addressed to the Honorable Chief Judge John L. Miller:

- **Defendant's Renewed Motion to Dismiss for Fraud on the Court, Lack of Board Authorization, Jurisdictional Defects, and Statute of Limitations Bar**, originally tendered on June 27, 2025, and resubmitted with attached exhibits on June 30, 2025.

This filing is presented in light of ongoing constitutional and threshold deficiencies in the case record that remain unaddressed, despite repeated and documented attempts by Defendant to obtain adjudication of those issues. It is respectfully submitted that judicial review and appropriate relief are warranted.

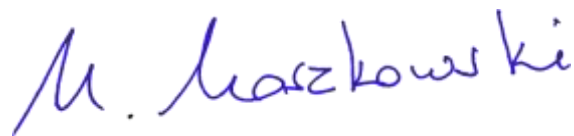
Respectfully submitted this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se  
Email: m.moszkowski@deepgulf.net  
Le Verdos  
83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 30<sup>th</sup> day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT RENEWED MOTION TO DISMISS FOR FRAUD ON THE  
COURT, LACK OF BOARD AUTHORIZATION, JURISDICTIONAL  
DEFECTS, AND STATUTE OF LIMITATIONS BAR**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully files this Renewed Motion to Dismiss the First Amended Complaint in its entirety, on the following independent and overlapping grounds:

**I. PROCEDURAL BACKGROUND**

1. This case was filed on April 3, 2018, and was promptly removed to U.S. District Court by Defendant based on complete diversity of citizenship.
2. Plaintiffs raised no objection to removal. The federal court reviewed extensive filings and dismissed eight of nine counts. The ninth was

moot or inapplicable on its face.

3. Plaintiffs then appealed to the Eleventh Circuit—still without raising any issue as to diversity. Only after the Court of Appeals sua sponte raised the issue of jurisdiction did Plaintiffs abruptly assert that co-Plaintiff Toke Oil and Gas S.A. destroyed diversity.
4. The case was remanded to state court, where it has lingered for over four years, including more than three years of dormancy, despite no new factual evidence being introduced by Plaintiffs.
5. During that time, Defendant uncovered extensive new evidence. Plaintiffs submitted none. Yet they now seek trial and judgment on facts already rejected federally, now repackaged without legal basis.

## **II. LACK OF CORPORATE AUTHORITY TO INITIATE LITIGATION**

6. At all relevant times, Defendant was a director of both DeepGulf, Inc. and Toke Oil and Gas S.A.
7. No board meeting was convened, and no resolution was passed authorizing either corporation to initiate litigation.
8. The complaint proceeds ultra vires and without standing. This alone requires dismissal.

## **III. FICTIONAL DOMICILE AND MISUSE OF PLAINTIFF'S**

## **PRINCIPAL'S ADDRESS**

9. Plaintiffs listed the Pensacola home address of Plaintiff Howard as the official address for both DeepGulf and Toke. They even mischaracterized Toke as “Toke Oil and Gas, Inc.” —a suffix typical of American corporations but legally incoherent in East Timor.
10. Toke never had a registered presence in Florida or the United States, and the only address ever associated with it was the personal Florida residence of co-litigant Rus Howard. No documentation has ever been provided from Timor-Leste or any foreign government proving Toke’s continued legal existence, registration, or foreign domicile. The only reasonable inference is that Toke did not qualify as a bona fide foreign plaintiff, and its inclusion served solely to defeat diversity jurisdiction and remand the case back to state court.
11. Toke has been named as Plaintiff since the original 2018 Complaint. Plaintiffs never emphasized its alleged foreign status during federal proceedings—through summary judgment and even appeal—until it became tactically advantageous to claim foreign status and destroy diversity..

## **IV. FRAUDULENT JOINDER TO EVADE FEDERAL SCRUTINY**



- 12.** Plaintiffs' First Amended Complaint falsely claims: "Toke Oil and Gas is a wholly owned subsidiary of DeepGulf, domiciled in Timor Leste also known as East Timor in the United States."
- 13.** This phrase is not only incoherent—it provides no documentation of foreign incorporation, no current registration, and no governmental attestation from East Timor.
- 14.** Plaintiffs used Toke's alleged foreign status not to reflect reality, but solely to destroy diversity and escape federal jurisdiction after losing eight counts.
- 15.** The use of a defunct, unauthorized foreign co-Plaintiff with no genuine address, documents, or board approval is jurisdictional fraud.

## **V. STATUTE OF LIMITATIONS BAR**

- 16.** All claims arise from events between 2010 and 2014. Plaintiffs were informed in writing of all key facts between 2012 and 2014.
- 17.** The Complaint was filed in 2018, beyond the four-year limitation for civil theft, fraud, conversion, and related counts (Fla. Stat. § 95.11).
- 18.** The Court has never ruled on this dispositive issue—one that should have precluded the need for trial altogether.

## **VI. ILLUSORY INJURY AND ARITHMETICAL ABSURDITY**

**19.** Plaintiffs claim \$345,000 was misappropriated by Defendant. In fact, the sum was transferred by a Timorese co-founder out of his personal share to cover Defendant's tax burden—caused by DeepGulf's own failure to pay three years of contractually guaranteed salary.

**20.** DeepGulf received 50.3% of project revenue despite owning only 33.33%, while the Timorese partners—owners of 66.67%—received just 49.7%. The \$345,000 was part of their underpaid share.

**21.** For DeepGulf to claim that it was “stolen from” is factually and mathematically absurd: it received more than it was owed. If any party were entitled to reimbursement, it would be the Timorese partners.

**22.** At the time the Complaint was filed, DeepGulf owed Defendant \$888,000 in unpaid salaries alone (3 years at \$120,000, plus 4 years at \$132,000), not including over \$150,000 in unreimbursed expenses.

## **VII. FAILURE TO ADJUDICATE INDIGENCY AND EXCLUSION FROM TRIAL**

**23.** Defendant was excluded from trial due to:

- Judicial lien on his bank account (seizing all sums above €646) by a Plaintiff confederate;

- Seizure and forced auction of his only home by a Plaintiff confederate;
- Physical incapacity (dual untreated inguinal hernias);
- Lack of funds to travel.

**24.** The Court refused to adjudicate Defendant's indigency, ignored formal requests for remote appearance, and proceeded in default.

**25.** This violates the Due Process Clause of the U.S. Constitution and Article I, Section 9 of the Florida Constitution. It also contradicts *Boddie v. Connecticut*, 401 U.S. 371 (1971), which prohibits denial of access to indigent litigants where courts are the only forum for redress..

**WHEREFORE**, Defendant respectfully moves this Court to:

- 1.** Dismiss the First Amended Complaint with prejudice;
- 2.** Declare that Plaintiffs lack standing due to lack of board authorization and fictitious plaintiff status;
- 3.** Find that all claims are time-barred;
- 4.** Acknowledge that trial proceeded in violation of constitutional safeguards;
- 5.** And grant all such further relief as the Court deems just and proper.

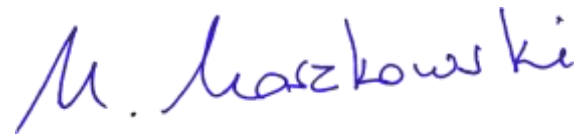
Respectfully submitted this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se

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83300 Châteaudouble, France



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